Mitigating Circumstances 2025/26

Policy Statement:

During their studies, students may experience events that adversely affect their ability to complete an assessment. This Policy sets out the University's arrangements for considering requests for mitigation in such circumstances.

The University defines Mitigating Circumstances as 'unforeseeable or unpreventable circumstances that may have a significant adverse effect on the academic performance of a student'. Mitigating Circumstances are one element of the support available to students. Mitigating Circumstances should be used as an additional tool to provide support where inclusive design and reasonable adjustments cannot on their own fully mitigate the impact of the student's circumstances.

Mitigating Circumstances are a supportive measure and wherever possible should be used to keep students on track for timely progression and achievement on their course. Whilst Mitigating Circumstances decisions should not usually impact on timely progression, students should be aware that there are instances where this is unavoidable and may require assessments to be taken later than originally scheduled and delay progression at the usual rate – extending the duration of a course and in some circumstances meaning students may not complete with their original student cohort.

Panel:

The Mitigating Circumstances Panel is responsible for considering and determining cases of mitigating circumstances in accordance with institutional regulations. The Panel is comprised of the following members:

- Member of School Administration Team
- Head of School
- Course Leader
- Module Leader

Criteria:

For a claim to be accepted, the student must be able to demonstrate that Mitigating Circumstances are ALL of the following:

- Significant: The event or circumstances must have had a serious impact on their studies.
- Unexpected: The student must normally have had no prior knowledge that a particular event or circumstance would occur.
- Unpreventable: There must have been no reasonable steps that the student could have taken to prevent the event or circumstance from occurring.
- Relevant: The student must be able to link the event or circumstance, and its impact, on the period for which the application is being made.
- Evidence: An application for Mitigating Circumstances must meet the requirements for independent documentary evidence.

Guidance:

Guidance is updated periodically to support the application of this policy.

Examples of Circumstances Normally Considered With Evidence

- Serious personal illness or injury, or deterioration of a long-term condition
- Being a victim of crime (usually requires a police crime number)
- Jury service
- Involvement in a criminal case (e.g., as a witness)
- Failure of, or inability to access, University-provided equipment
- Failure in the provision of reasonable adjustments

Examples of Circumstances That Do Not Require Evidence at the Point of Application

- The death of someone close to the student
- Confirmed carer status
- "Flexibility with Assessment Deadlines" – where adjustments are already confirmed by Student Services

Circumstances Considered With Evidence (Further Detail)

- Personal problems, trauma, family crisis, domestic issues, or unexpected childcare issues
- Illness of a close family member
- Planned medical operations (with advance notice)
- Planned hospital tests (with advance notice)
- Unforeseen consequences of disability not mitigated by agreed adjustments
- Unforeseen accommodation issues outside the student's control (excluding planned house moves due to end of lease)

Circumstances Not Normally Considered

These include support needs not previously disclosed to the University. Such needs should be shared with Inclusive Support so that adjustments can be considered.

Other examples include situations a student is reasonably expected to manage:

- Time mismanagement
- Lost or un-backed-up electronic coursework
- Routine domestic events (house moves, holidays, celebrations)
- Normal pressures of multiple deadlines
- Traffic or travel difficulties
- Illness without medical consultation or evidence
- Pregnancy (excluding associated illness, appointments, or issues close to due date)
- General exam nerves without a diagnosed mental health condition
- Mistaking deadlines, misreading exam timetables, or submitting the wrong assignment
- Paid employment causing time-management issues (full-time students)

Ongoing Circumstances and Long-Term Health Conditions

Mitigating circumstances are not normally awarded for known or ongoing conditions unless events beyond the student's control prevent access to support. Evidence will be required.

Circumstances Affecting All or Groups of Students

Where unexpected events impact all or certain groups of students (e.g., industrial action, public health restrictions), the University will implement mitigation and notify students. Adjustments may include changes to teaching, learning, or assessment methods.

If a student feels they are severely affected beyond these general mitigations, they should apply for mitigating circumstances through the usual process.

Applications for mitigating circumstances normally require independent documentary evidence.

Acceptable Evidence:

- Independent third-party documentation (e.g., GP, police, hospital)
- Supporting information from Student Services (e.g., appointment confirmation from Counselling, Mental Health & Wellbeing)

All Evidence Should:

- Be clear (photographs or scans)
- Identify the student (name must be visible)
- Identify the evidence provider (e.g., letter-headed documents, signed letters, emails or texts from relevant professionals
- Include Date of the evidence, Date and duration of issue/incident (where applicable), where possible the impact of the issue
- Be written in English
- Include full details for medical notes (e.g., fit note second page with patient details)

Academic/School Staff Supporting Evidence

In some circumstances, academic staff may provide supporting evidence, such as:

- When failure or unavailability of equipment essential to learning outcomes is beyond the student's control
- Unforeseen issues with placement supervision or sign-off
- Employment pressures (workload, peak periods)

Evidence Not Accepted

- Photographs of non-documentary evidence, such as car accidents, injuries or illness, COVID lateral flow tests, pets
- Documents lacking student identification or relevant dates
- Assignment briefs
- Any documentation not meeting the "All Evidence Should" criteria

Data Concerning Third Parties

Personal information about third parties should not be submitted unless absolutely necessary.
By providing such information, students confirm they have the third party's consent.

Verification of Evidence

The University may seek further checks, information, or additional evidence.
Submitting falsified documentation may result in disciplinary or fitness-to-practice proceedings.

Timeframes:

Students should make an application before the assessment deadline, except where the request for mitigation relates to circumstances occurring on the assessment deadline or examination date. In this situation the student must submit their Mitigating Circumstances application within three calendar days of the assessment deadline or examination date. This includes where examinations have been started but not completed because of unforeseen circumstances.

Early Applications:

Early applications for Mitigating Circumstances should clearly demonstrate how they meet the 'unexpected' and 'unpreventable' criteria. For example, a planned operation, jury service, or representation of the University or country at a recognised international event are examples of where an early application would meet the conditions. Holidays would not meet the unexpected or unpreventable criteria.

Late Applications:

The University recognises that, in some cases, circumstances may prevent a student from submitting a Mitigating Circumstances application by the assessment deadline or within the timeframes set out in this Policy. Applications submitted after the assessment deadline or examination date will not normally be considered unless the student provides a compelling explanation for their inability to submit the application by the required deadline.

Late applications may be accepted only if they meet all the following additional criteria:

- The circumstance occurred proximate to the assessment deadline, meaning prior to the deadline and within a reasonable timeframe.
- The application clearly explains why it could not have been submitted by the assessment deadline, with relevant evidence provided wherever possible.

A late Mitigating Circumstances application may be submitted only before the Course Assessment Board has convened, as the Board makes its decisions based on the information available at the time of its meeting.

Where Mitigating Circumstances become known after the Course Assessment Board has met, and were unknown to the University by the original deadline, they should be raised through an academic appeal in accordance with the Academic Appeals Procedure.

Applying more than once based on the same Mitigating Circumstances:

A student may not submit more than one Mitigating Circumstances application based on the same standalone circumstance, unless they can demonstrate that the circumstance has worsened, or that its effects have persisted longer than originally anticipated.

Disability, Learning Difficulty, Medical Conditions (Signed Reasonable Adjustment Report with Student Support):

Students who require flexibility in assessment deadlines as a reasonable adjustment due to a disability, learning difficulty, medical condition, do not normally need to submit a Mitigating Circumstances application.

Where flexibility in assessment deadlines has been formally agreed as an adjustment, students may submit their assessments up to 7 days after the agreed deadline without penalty. This arrangement is managed by the School and does not require a Mitigating Circumstances application.

However, due to the nature of certain forms of assessment—such as examinations, OSCEs, performances, presentations, and other assessments with fixed schedules—flexibility to the deadline may not be possible. Students should consult their academic tutor to determine whether any alternative adjustments can be made.

If no suitable adjustment can be arranged, or if a student requires more than 7 days beyond the standard deadline, a Mitigating Circumstances application should be submitted.

Late Assessment Submissions:

Students who submit work within 7 calendar days after the published submission date, without an authorised extension granted through the Mitigating Circumstances process or a reasonable adjustment permitting flexible deadlines, will receive no higher than the minimum pass mark for that assessment element (including pass/fail assessments, where the minimum grade recorded will be *pass*).

Any work submitted more than 7 calendar days after the published submission date, without an authorised extension, will be awarded a mark of 0% for that assessment element (for pass/fail assessments, the grade recorded will be *fail*).

Assignment Submission whilst awaiting a Mitigating Circumstances application decision:

Students who are awaiting the outcome of a Mitigating Circumstances application are expected to continue working on their assessments and submit them by the original deadline. If the Mitigating Circumstances application is not approved, the submission made by the original deadline will stand as the final submission.

If the application is subsequently approved, the student will be permitted to submit the assessment once more before the new extended deadline. Should the student choose not to make a further submission during this extension period, the original submission will be treated as the final version. If a new submission is made within the extension period, the original submission will be disregarded and only the later submission will be marked.

Please note that an extension is not automatically granted; it is dependent on the outcome of the Mitigating Circumstances application.

How to Request an Extension due to Mitigating Circumstances:

Students can submit an official application by following the steps below:

- Visit the UCLan Cyprus website
- Log in using your student credentials.
- Go to Student Hub
- Select My Profile
- Navigate to Mitigating Circumstances and submit your request